

		Moving party to give notice. Status Conference The court schedules this matter for a status conference on 6-24-2024, at 8:30 AM, in C15. Regents to give notice.
3	Hunter vs Ayres Self Storage, LTD. 2023-01326116	Demurrer to Complaint Defendants, Ayres Self Storage, LTD, Bruce Ayres, Ayres Self Storage Costa Mesa, LLC, Ayres Self Storage Montclair, LLC's (Defendants) Demurrers to the First Cause of Action for Violation of Business and Professions Code 21700 et seq and the Second Cause of Action for Violation of Business and Professions Code 17200 et seq to the Complaint are SUSTAINED in part and OVERRULED in part. Defendants' Notice states Defendants demur only to the first cause of action for violation of the California Self-Service Storage Act (Act) and second cause of action for violation of the Unfair Competition Law (Demurrer, 1:26-2:11), while the memorandum of points and authorities argues all four causes of action are insufficiently pled. The notice of motion must state in the first paragraph exactly what relief is sought and the grounds on which the relief is sought. <i>Code of Civil Procedure</i> § 1010; <i>California Rule of Court</i>, rule 3.1110(a); <i>People v. American Surplus Insurance Co.</i> (1999) 75 Cal.App.4th 719, 726. Generally, the court cannot grant different relief, or relief on different grounds, than stated in the notice of motion. <i>American Surplus Insurance, Id.</i> at 726; <i>Luri v. Greenwald</i> (2003)

		107 Cal.App.4th 1119, 1124; <i>Blumenthal v. Sup.Ct.</i> (1980) 103 Cal.App.3d 317, 320. Plaintiff's Opposition does not specifically respond to the Demurrer's arguments on the third and fourth causes of action. Further, Defendants' reply appears to only argue the first two causes of action are insufficiently pled. (see Reply,7:2-12.) Therefore, the Court will consider the merits of the Demurrer only as to the first two causes of action. 1. First Cause of Action: Violation of California Self-Service Storage Facility Act The first cause of action is for Violation of the California Self-Service Storage Facility Act <i>Business and Professions Code</i> § 21700. <i>Business and Professions Code</i> § 21703 provides: "If any part of the rent or other charges due from an occupant remain unpaid for 14 consecutive days, an owner may terminate the right of the occupant to the use of the storage space at a self-service storage facility by sending a notice to the occupant's last known address and to the alternative address specified in <u>subdivision (b) of Section 21712</u>...[¶] The notice shall contain all of the following:..[¶] (b) A statement that the occupant's right to use the storage space will terminate on a specified date (not less than 14 days after the mailing of the notice) unless all sums due are paid by the occupant before the specified date." <i>Vitug v. Alameda Point Storage, Inc.</i> (2010) 187 Cal.App.4th 407 (<i>Vitug</i>) states: "we hold that the Act does not itself prohibit the charging of rent and late fees after termination of a renter's access to his or her unit; the Act defers to the underlying rental agreement for determination of what charges are proper and may be included in the lien." <i>Id.</i> at 416-417. The <i>Vitug</i> court stated that
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		this was because: “in enacting the Act, and section 21713.5 in particular, the Legislature did not intend to regulate the circumstances under which rent and late fees could be charged. Instead, the Legislature intended to provide owners with liens, establish fair procedures to enforce the liens, and determine the <i>amount</i> of reasonable late fees. This is apparent from the fact that the Act addresses those matters directly and in detail but does not expressly address when rent and late fees may be charged.” <i>Id.</i> at 414 (italics original). The Opposition does not address <i>Vitug</i>. Here, the Complaint alleges all Defendants violated the California Self-Service Storage Facility Act (Act) because they engaged in a practice of locking Plaintiff and others out if rent was paid 6 days late, in violation of the 28-day safe harbor provision required by the Act, and because Defendants required Plaintiff and others to pay rent and late fees despite locking them out of their storage units. (Complaint, ¶¶ 32-37.) Specifically, Defendants are alleged to be in violation of <i>Business and Professions Code</i> § 21703 because they did not wait the required 28 days under this section to deny Plaintiff access to her rental unit for unpaid rent. (Complaint, ¶ 14.) However, the Complaint does not allege when Plaintiff was allegedly locked out from her storage unit, or the date(s) Defendants charged rent or late fees. The Complaint also makes all allegations in the first cause of action against all Defendants, even though some defendants are flesh and blood individuals and some are not. It is unclear which of the Defendants charged Plaintiff fees and/or locked Plaintiff out, and when this was done. The Reply argues the demurrer should be sustained given that Defendants cannot determine whether each is alleged to have violated the Act without such information. (Reply, 5:8-21.)
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	Additionally, “[a] private party can sue for violation of a statute only where the statute in question allows it.” <i>Mayron v. Google, LLC</i> (2020) 54 Cal.App.5th 566, 571. “We first examine the statutory text to see if it contains ‘clear, understandable, un mistakeable terms,’ ‘which strongly and directly’ indicate a private of action is allowed. [citation]” <i>Ibid.</i> “The statute may, for instance, refer to obtaining a remedy or enforcing its provisions ‘by way of an action.’ [citation]” <i>Ibid.</i> “Where the text does not contain an un mistakeable directive, the legislative history may indicate whether the Legislature intended to create a private cause of action.” <i>Ibid.</i> The Complaint pleads Defendants’ actions have violated <i>Business and Professions Code</i> sections 21703 and 21713.5, but these sections on their face do not evidence an intent to create a private cause of action. Instead, these sections provide guidelines to owners of self-storage facilities for the amount of late fees they may charge and the types of notices they may issue. Based on the above, the Court finds the first cause of action is insufficiently pled. To the extent the Act supports a cause of action in this instance, the Complaint does not allege any dates Defendants violated the Act by charging rent or fees. Additionally, <i>Vitug</i> suggests charging rent and late fees past the date of lockout is not a violation of the Act, as the parties must defer to the rental agreement. The plain language of the Act also does not demonstrate an intent to grant a private right of action for violation of the Act. Therefore, the demurrer to the first cause of action is SUSTAINED. 2. Second Cause of Action: Violation of the Unfair Competition Law The second cause of action is for violation of the Unfair Competition Law. <i>Business and Professions Code</i> section 17200 (“UCL”)
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		prohibits “unfair competition,” which is defined to include “any unlawful, unfair or fraudulent business act or practice” and “unfair, deceptive, untrue or misleading advertising” and any act prohibited by business and professions code section 17500. A cause of action under the UCL must be stated with “reasonable particularity.” <i>Gutierrez v. Carmax Auto Superstores California</i> (2018) 19 Cal.App.5th 1234, 1261. Defendants argue the second cause of action is insufficiently pled. (Demurrer, 9:15-23.) The Complaint alleges Defendants’ practice of locking out Plaintiff and others before the time specified under <i>Business and Professions Code</i> section 21703 had elapsed constitutes an unlawful business practice. (Complaint, ¶ 43.) Specifically, the Complaint alleges Defendants’ charging a “Pre-foreclosure fee” violates <i>Business and Professions Code</i> section 21713.5 (Complaint, ¶ 45) because the fees charged are above the statutory maximum. Plaintiff also alleges she suffered damages, including being required to pay rent and late charges. (Complaint, ¶ 44.) Liberally construing the allegations of the Complaint, the Court finds the second cause of action is sufficiently pled. Specifically, the Complaint alleges Defendants actions in charging rent and late fees are unlawful as a violation of <i>Business and Professions Code</i> section 21713.5 and this caused Plaintiff to incur monetary loss. These allegations are sufficient to state a claim for violation of the UCL. Based on the foregoing, the Demurrer to the second cause of action is OVERRULED. Plaintiff is granted 20 days leave to amend the First Cause of Action. Demurring Defendants are to give notice.
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		Motion to Strike Defendants, Ayres Self Storage, LTD, Bruce Ayres, Ayres Self Storage Costa Mesa, LLC, Ayres Self Storage Montclair, LLC’s (Defendants) Motion to Strike Portions of the Complaint is GRANTED in part and DENIED in part. It is unclear from the Notice of Motion what Defendants are specifically moving to strike. The Notice of Motion states Defendants are moving to strike “words and/or phrases” in the Complaint, including all of the following: “Standardized Policies,” “Pre-Foreclosure Fee,” “Premature Lockout Methods,” “Premature Lockout Class Members,” “Twenty-Eight Day Safe Harbor,” “Unlawful Lockout Policies,” “California’s Unfair Competition Law (UCL),” paragraphs 5, 6, 7, 8, 9, 13, 14, 17, 18, 21, 26, 27.A2, 29, 32, 33, 35, 36, 37, 39,” “Treble Damages of \$150,000,” “Reasonable Attorney Fees,” “Punitive Damages,” “All are class members,” “Unlawful Policy,” “Standardized Business Practice,” “Working Date,” “Safe Harbor,” “Public Policy Violations” and “Pre-Foreclosure Group.”(Notice of Motion, 2:1-21.) Based on the way the notice is phrased, notably the use of “and/or” before the above list of phrases, it is unclear if Defendants are limiting their request to an order striking just the above from the Complaint or something more. Defendants’ memorandum of points and authorities appears to argue the “class action allegations” should be stricken because the
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		Complaint does not satisfy the requirements for pleading a class action. (Motion, 5:9-6:14.) No legal argument is made as to the other requests which appear to be in the notice of motion, although the motion appears to argue the Complaint is insufficiently pled as a whole. (Demurrer, 5:1-8.) To the extent Defendants are arguing that portions of the Complaint should be stricken because it is insufficiently pled, <i>Pierson v. Sharp Memorial Hospital, Inc.</i> (1989) 216 Cal.App.3d 340, 342, explains, “Preliminarily, we note a motion to strike is generally used to reach defects in a pleading which are not subject to demurrer. A motion to strike does not lie to attack a complaint for insufficiency of allegations to justify relief; that is a ground for general demurrer. [Citation.]” Regarding the class action allegations, Plaintiff appears to concede this argument. The Opposition states: “PLAINTIFF does not oppose the striking of all clear and direct references to “CLASS ACTION” damage claims.” (Opposition, 2:2.) Because Plaintiff concedes on this point, the Court grants the motion to the extent it seeks to strike the Complaint’s class action allegations only. Moving party to give notice.
4	Li vs Alanisi 2021-01218134	Motion to Be Relieved as Counsel of Record for plaintiff Jun Li Moving attorney Helen W. Quan’s Motion to be Relieved as Counsel for Plaintiff Jun Li (Motion) is GRANTED. Moving attorney’s motion was previously continued from 6-26-23 because there was no proof of service filed with the motion and no proposed order filed either. Moving attorney’s